



EXCLUSIVE PROPERTY MANDATE (SALE)

STRONG PROTECTION VERSION

Property Address: _____

Owner Name(s): _____

Contact Number: _____

Email Address: _____

1. Appointment and Exclusive Authority

I/We, the lawful owner(s) or duly authorized representative(s) of the above property (the "**Owner**"), hereby appoint **MPS Realty** as the sole and exclusive real estate consultant to market, introduce buyers, negotiate and facilitate the sale of the property during the Mandate Period.

During the Mandate Period, the Owner shall not appoint, authorize or engage any other broker, agent, consultant or intermediary for the sale, nor independently advertise or conclude a sale without promptly informing and coordinating with MPS Realty. All sale enquiries received directly by the Owner during this period shall be referred to MPS Realty for coordination.

2. Mandate Period

This exclusive mandate shall be valid from ____ / ____ / ____ to ____ / ____ / ____ (the "**Mandate Period**"). Any extension shall be recorded by signed writing, email or WhatsApp confirmation between the parties.

3. Property and Sale Terms

Expected Sale Price: Rs. _____
Minimum Acceptable Price (if any): Rs. _____
Payment / possession terms: _____
Existing loan / tenancy / charge (if any): _____

4. Services by MPS Realty

MPS Realty may provide: property positioning and pricing guidance; online and offline marketing; enquiry screening; buyer coordination; site visits; negotiation support; transaction follow-up; and periodic progress updates. MPS Realty does not guarantee a sale, a specific price, buyer financing, legal title or completion within a fixed time.

5. Marketing and Promotion Authority

The Owner authorizes MPS Realty to photograph and video the property, prepare descriptions and advertisements, display signage where permitted, and publish property information through property portals, websites, social media, WhatsApp and other suitable channels. MPS Realty may withhold the precise address, owner identity and confidential documents from public advertisements and disclose them only to prospective buyers or professional advisers on a need-to-know basis.

6. Owner Representations and Disclosure

The Owner represents that the Owner has full authority to offer and sell the property and shall provide true, complete and current information concerning title, ownership, approvals, encumbrances, loans, litigation, acquisition notices, tenancy, possession, tax dues, maintenance dues and any material defect or restriction. The Owner shall promptly notify MPS Realty of any change.

MPS Realty may rely on information and documents supplied by the Owner but is not responsible for independently certifying title, measurements, approvals, structural condition, taxation or legal compliance. The buyer and Owner shall obtain advice from their respective advocates, engineers, accountants or other professionals.

7. Owner Cooperation and Access

The Owner shall provide reasonable access for inspection and site visits, supply requested documents within a reasonable time, keep MPS Realty informed of direct enquiries and negotiations, and avoid making statements or commitments inconsistent with the agreed listing terms. The Owner may accept or reject any offer at the Owner's discretion, subject to the commission and protection clauses below.

8. Commission and Payment

The Owner agrees to pay MPS Realty a service commission equal to **2% (two per cent) of the final gross sale consideration**, plus applicable taxes, if any. Commission becomes earned and payable upon successful registration of the sale deed in favour of a buyer covered by this mandate.

If the transaction is structured through an agreement for sale, assignment, transfer of shares or interests, nomination, power of attorney, development arrangement, exchange, sale to a related person/entity, or any other arrangement that substantially transfers ownership, possession or economic benefit, it shall be treated as a sale for the purpose of this mandate; commission shall be calculated on the entire consideration or value attributable to the transfer.

9. Protected Buyer and Non-Circumvention

A **"Protected Buyer"** means any person or entity, including its relatives, nominees, partners, directors, shareholders, affiliates, advisers or funding parties, whose enquiry was received, whose identity or contact was shared, or to whom the property or its details were introduced, shown or discussed by MPS Realty during the Mandate Period. MPS Realty's WhatsApp messages, emails, call records, enquiry records, visit records or other contemporaneous records may be used to establish an introduction.

The Owner shall not bypass, exclude or circumvent MPS Realty by negotiating or closing directly or indirectly with a Protected Buyer. If the Owner or anyone acting for the Owner sells, agrees to sell, transfers or substantially concludes a transaction with a Protected Buyer during the Mandate Period, the full 2% commission plus applicable taxes shall remain payable to MPS Realty, irrespective of whether MPS Realty participates in the final negotiation or registration.

10. Post-Expiry Protection Period

The protection in Clause 9 shall continue for 60 **days after expiry or termination** of this mandate for every Protected Buyer introduced during the Mandate Period. If a transaction with a Protected Buyer is concluded within this period, the full commission shall be payable. This protection shall also apply where negotiations began during the Mandate Period and the agreement or registration is deliberately deferred, routed through another person/entity, or completed after the 60 -day period as part of substantially continuous negotiations initiated earlier.

11. Exclusive Mandate Breach

If, during the Mandate Period, the Owner appoints another intermediary or independently concludes a sale with a buyer not previously disclosed in writing to MPS Realty before signing this mandate, such act shall constitute a breach of exclusivity. Where the breach results in a completed sale, the Owner shall pay MPS Realty the agreed 2% commission plus applicable taxes. This clause is intended to protect the exclusive appointment and is not a penalty.

12. Pre-Existing Prospects

Any buyer already in active discussion with the Owner before the date of this mandate must be identified below at the time of signing. A person not listed shall not be treated as a pre-existing prospect unless the Owner provides reliable written evidence of substantive negotiations predating this mandate.

Pre-existing prospect(s), if any: _____

13. Transaction Information and Notice

The Owner shall promptly inform MPS Realty of every offer, token advance, letter of intent, agreement for sale, cancellation and registration relating to the property during the Mandate Period and the 60 -day protection period. Upon reasonable request, the Owner shall provide documentary confirmation of the final sale consideration solely for commission calculation and records.

14. Withdrawal, Suspension and Termination

Either party may terminate this mandate for material breach by giving **7 days' written notice** and an opportunity to cure the breach. The Owner may withdraw the property from sale by written notice; however, withdrawal, expiry or termination shall not affect accrued rights, unpaid commission, Protected Buyer obligations, confidentiality, indemnity or dispute-resolution provisions.

MPS Realty may suspend marketing or terminate the mandate immediately where information appears false or incomplete, access is repeatedly denied, conduct is unlawful or unsafe, or continuing the assignment may expose MPS Realty to legal, financial or reputational risk.

15. Expenses

Ordinary marketing expenses chosen by MPS Realty shall be borne by MPS Realty. Any premium advertisement, staging, professional photography, travel, signage or other special expense chargeable to the Owner must be approved by the Owner in writing before it is incurred. Approved expenses remain payable even if the property is not sold.

16. Confidentiality and Data Use

Each party shall use non-public information received under this mandate only for the proposed transaction, professional advice, compliance and record-keeping. MPS Realty may share relevant property and transaction information with prospective buyers, advocates, lenders, valuers, photographers, portal providers and service partners where reasonably necessary, while taking reasonable care to limit disclosure.

17. Indemnity

The Owner shall indemnify and hold MPS Realty and its representatives harmless from third-party claims, losses, costs or proceedings arising from inaccurate or withheld information supplied by or on behalf of the Owner; defective or disputed ownership/title; undisclosed encumbrance, tenancy, litigation, approval issue or material defect; or the Owner's breach of this mandate, except to the extent directly caused by MPS Realty's fraud, wilful misconduct or gross negligence.

18. No Custody of Funds

Unless separately authorized in writing, MPS Realty shall not receive or hold token advances, sale consideration, original title deeds or possession on behalf of either party. Payments between buyer and Owner shall be independently documented and acknowledged by them.

19. Electronic Communications and Evidence

This mandate and any approval, extension, buyer introduction, offer, notice or instruction may be evidenced by signed physical copy or by electronic communication, including email and WhatsApp, from the contact details used by the parties. Electronic copies and records shall be treated as evidence to the extent permitted by applicable law.

20. Governing Law and Dispute Resolution

This mandate shall be governed by the laws of India. The parties shall first attempt good-faith resolution through written discussion within 15 days of a dispute notice. Failing settlement, courts having jurisdiction in **Chennai, Tamil Nadu** shall have exclusive jurisdiction. Nothing prevents either party from seeking urgent interim relief from a competent court.

21. General

This document records the entire mandate concerning its subject matter and supersedes prior oral understandings. Any amendment must be confirmed in writing. If any provision is held invalid, the remainder shall continue in effect. No waiver is effective unless made in writing, and delay in enforcing a right is not a waiver.

22. Owner Confirmation

I/We confirm that I/we have read and understood this mandate, had the opportunity to seek independent legal advice, and voluntarily grant MPS Realty exclusive selling authority on the above terms.

For the Owner	For MPS Realty
Name: _____	Authorized Representative: M Panneer Selvam
Mobile: _____	Mobile: 96001 77749 / 98402 15475
Signature: _____	Signature: _____
Date: ____ / ____ / ____	Date: ____ / ____ / ____
Place: _____	Place: Chennai

Witness 1	Witness 2
Name: _____	Name: _____
Address: _____	Address: _____
Signature: _____	Signature: _____

MPS REALTY - Your Trusted Property Partner

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BUYING | SELLING | COMMERCIAL RENTALS

Important: This is a business template and not a substitute for advice from a qualified advocate on the facts of a particular transaction.